

MUTUAL NON-DISCLOSURE AGREEMENT
Governed by the Laws of the State of Florida

This Non-Disclosure Agreement (the "Agreement") is entered into as of this _____ day of _____, _____, by and between:

Disclosing Party / Consultant:	_____, a Florida _____, with offices at _____.
Receiving Party / Client:	_____, a _____, with offices at _____.

Individually referred to as a "Party" and collectively as the "Parties".

1. Purpose

The Parties wish to explore a potential business relationship or engagement (the "Purpose"), including but not limited to the provision of IT consulting, software development, systems integration, or managed services, in connection with which either Party may disclose its Confidential Information to the other Party.

2. Definition of Confidential Information

"Confidential Information" means any non-public information, technical data, or know-how disclosed by one Party to the other in connection with the Purpose, including but not limited to: trade secrets; source code, object code, and software algorithms; system architecture, network configurations, and infrastructure designs; API keys, credentials, and access tokens; research, product plans, customer lists, pricing, financial data, and business strategies.

Presumption of Confidentiality: All information shared between the Parties in the context of the Purpose — whether disclosed in writing, orally, electronically, or by inspection — shall be presumed confidential and subject to the protections of this Agreement, unless the disclosing Party expressly indicates otherwise in writing at the time of disclosure.

3. Non-Disclosure and Non-Use

Each Party agrees not to use the Confidential Information of the other Party for any purpose other than evaluating or advancing the Purpose. Each Party shall protect such information using at least the same degree of care it uses to protect its own confidential information, but in no event less than reasonable care. Neither Party shall disclose Confidential Information to any third party without the prior written consent of the disclosing Party, except to its employees, contractors, or advisors who have a need to know and are bound by confidentiality obligations no less restrictive than those herein.

4. Permitted Disclosures

The obligations of Section 3 shall not apply to information that: (a) is or becomes publicly available through no fault of the receiving Party; (b) was rightfully known to the receiving Party prior to disclosure;

(c) is independently developed by the receiving Party without use of Confidential Information; or (d) is required to be disclosed by law, regulation, or court order, provided the receiving Party gives prompt written notice to the disclosing Party and cooperates in seeking a protective order.

5. Data Security and Breach Notification

Each Party shall implement and maintain commercially and technically reasonable security measures appropriate to the nature and sensitivity of the Confidential Information, in order to protect it against unauthorized access, disclosure, alteration, or destruction. Such measures shall include, at minimum: (a) encryption of Confidential Information in transit and at rest; (b) access controls limiting disclosure to personnel with a legitimate need to know; and (c) reasonable precautions consistent with current industry practices for information of similar sensitivity.

In the event of a confirmed or reasonably suspected unauthorized access, disclosure, or breach involving the other Party's Confidential Information, the affected Party shall: (i) notify the other Party in writing within forty-eight (48) hours of discovery; (ii) provide a description of the nature of the breach, data involved, and likely impact; and (iii) promptly take all reasonable steps to contain, investigate, and remediate the breach at its own expense.

6. Intellectual Property

Nothing in this Agreement grants either Party any license, title, or ownership interest in the other Party's Confidential Information, intellectual property, source code, or proprietary technology. All pre-existing intellectual property remains the exclusive property of its owner. Any work product or developments created in connection with the Purpose shall be addressed in a separate written agreement.

7. Return or Destruction of Information

Upon written request by the disclosing Party, or upon termination of this Agreement, the receiving Party shall promptly return or certifiably destroy all Confidential Information and any copies, notes, or summaries thereof, including data stored electronically. The receiving Party shall provide written certification of destruction within ten (10) business days of such request.

8. Non-Solicitation

During the term of this Agreement and for _____ thereafter, neither Party shall directly solicit, recruit, or hire any employee, contractor, or consultant of the other Party who was involved in the Purpose, nor solicit the clients or customers of the other Party that were introduced through this engagement, without prior written consent. This restriction does not apply to general employment advertisements not targeted at the other Party's personnel.

9. Limitation of Liability

THE TOTAL CUMULATIVE LIABILITY OF EITHER PARTY TO THE OTHER FOR ANY AND ALL CLAIMS ARISING OUT OF OR RELATED TO THIS AGREEMENT — INCLUDING CLAIMS FOR BREACH OF CONFIDENTIALITY OBLIGATIONS — SHALL NOT EXCEED TWO (2) TIMES THE TOTAL FEES PAID OR REASONABLY ESTIMATED TO BE PAID BY THE CLIENT TO THE CONSULTANT UNDER THE APPLICABLE ENGAGEMENT, OR TEN THOUSAND DOLLARS (USD \$10,000), WHICHEVER IS GREATER.

IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, PUNITIVE, OR CONSEQUENTIAL DAMAGES, INCLUDING LOST PROFITS OR LOSS OF BUSINESS OPPORTUNITY, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. THE PARTIES ACKNOWLEDGE THAT THESE LIMITATIONS REFLECT A REASONABLE AND NEGOTIATED ALLOCATION OF RISK BETWEEN PARTIES OF COMPARABLE SOPHISTICATION, AND SHALL APPLY NOTWITHSTANDING ANY FAILURE OF ESSENTIAL PURPOSE OF ANY LIMITED REMEDY.

10. Injunctive Relief

Each Party acknowledges that any breach or threatened breach of this Agreement may cause irreparable harm for which monetary damages would be an inadequate remedy. Accordingly, in addition to any other legal or equitable remedies available, and notwithstanding the limitations set forth in Section 9, either Party shall be entitled to seek immediate injunctive relief or specific performance in any court of competent jurisdiction without the requirement of posting a bond or proving actual damages. The pursuit of injunctive relief shall not be deemed a waiver of the monetary caps established in Section 9.

11. Term and Termination

This Agreement shall remain in effect for _____ from the date of execution. Either Party may terminate this Agreement upon thirty (30) days written notice. Upon termination, Sections 3, 5, 6, 7, 8, 9, and 10 shall survive. The obligations of confidentiality with respect to Trade Secrets shall survive termination indefinitely under Florida Statutes § 688.002.

12. Governing Law and Dispute Resolution

This Agreement shall be governed by the laws of the **State of Florida** without regard to its conflict of law provisions, and shall apply to all Parties regardless of their jurisdiction of formation or principal place of business. Any disputes shall first be attempted to be resolved through good-faith negotiation within thirty (30) days of written notice. If unresolved, disputes shall be adjudicated exclusively in the state or federal courts of _____ County, Florida.

13. Miscellaneous

This Agreement constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior discussions or agreements. No amendment shall be valid unless in writing and signed by both Parties. If any provision is found unenforceable, the remaining provisions shall remain in full force. This Agreement may be executed in counterparts, including via electronic signature platforms (e.g., DocuSign), each of which shall constitute an original. Notices under this Agreement shall be delivered via email with read-receipt or certified mail to the addresses set forth above.

By:

By:

Name:

Name:

Title:

Title:

Date:

Date:

Disclaimer: This document is a template for informational purposes and does not constitute legal advice. Consult a licensed attorney before use.